Even as late as in April 1950, the political leadership of the two nations wished and hoped to restore normality and the return of those who left their homes on either side. On April 8, 1950, Nehru and Liaquat Ali Khan signed the Delhi pact, with a view to restoring confidence among the minorities on both sides. This, however, failed to change the ground reality. Even while the pact was signed the Government of India was also working on measures to rehabilitate those who had left West Punjab to the East and to Delhi and render them vocational skills and training. The wounds caused by the partition violence hardly healed even after decades. Scores of literary works stand testimony to the trauma of partition.

The partition posed a bigger challenge before Nehru and the Constituent Assembly, now engaged with drafting the founding and the fundamental law of the nation: to draft a constitution that is secular, democratic and republican as against Pakistan's decision to become an Islamic Republic.

8.2 Making of the Constitution



It was a demand from the Indian National Congress, voiced formally in 1934, that the Indian people shall draft their constitution rather than the British Parliament. The Congress thus rejected the White Paper circulated by the colonial government. The founding principle that Indians shall make their own constitution was laid down by Gandhi as early as in 1922. Gandhi had held that rather than a gift of the British Parliament, swaraj must spring from 'the wishes of the people of India as expressed through their freely chosen representatives'.

Elections were held, based on the 1935 Act, to the Provincial Assemblies in August 1946. These elected assemblies in turn were to elect the Central Assembly, which would also become the Constituent Assembly. The voters in the July 1946 elections to the provinces were those who owned property – the principle of universal adult franchise was still a far cry. The results revealed the Muslim League's command in Muslim majority constituencies while the Indian National Congress swept the elections elsewhere. The League decided to stay away from the Constitution making process and pressed hard for a separate nation. The Congress went for the Constituent assembly.

The elected members of the various Provincial assemblies voted nominees of the Congress to the Constituent Assembly. The Constituent Assembly (224 seats) that came into being, though dominated by the Congress, also included smaller outfits such as the communists, socialists and others. The Congress ensured the election of Dr B.R. Ambedkar from a seat in Bombay and subsequently elected him chairman of the drafting committee. Apart from electing its own stalwarts to the Assembly, the Congress leadership made it a point to send leading constitutional lawyers.

This was to make a constitution that contained the idealism that marked the freedom struggle and the meaning of swaraj, as specified in the Fundamental Rights Resolution passed by the Indian National Congress at its Karachi session (March 1931). This, indeed, laid the basis for the making of our constitution a document conveying an article of faith guaranteeing to the citizens a set of fundamental rights as much as a set of directive principles of state policy. The constitution also committed the nation to the principle of universal adult franchise, and an autonomous election commission. The constitution also underscored the independence of the judiciary as much as it laid down sovereign law-making powers with the representatives of the people.

The members of the constituent assembly were not averse to learn and pick up features from the constitutions from all over the world; and at the same time they were clear that the exercise was not about copying provisions from the various constitutions from across the world.

Jawaharlal Nehru set the ball rolling, on December 13, 1946, by placing the Objectives Resolution before the Constituent Assembly. The assembly was convened for the first time,

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